

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR HOMEOWNERS  
ASSOCIATION, INC., a Florida  
not-for-profit corporation,**

**Plaintiff,**

**v.**

**Case No.: 2022-CA-4348**

**COLONIAL MANOR MHC  
HOLDINGS, LLC., a foreign limited  
liability company,**

**Defendant.**

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**PLAINTIFF'S REPLY TO DEFENDANT'S AFFIRMATIVE DEFENSES**

COMES NOW, Plaintiff Colonial Manor Homeowners Association, Inc., by and through undersigned counsel, and hereby replies to Defendant, Colonial Manor MHC Holdings, LLC.'s, Affirmative Defenses as follows:

1. Defendant's First Affirmative Defense is denied<sup>1</sup>. Plaintiff is a duly formed and authorized mobile home park HOA as contemplated by Chapter 723 of the Florida Statutes and obtained prior written authorization of more than half of the membership before filing this action.

2. Defendant's Second Affirmative Defense is denied. See generally *Biza, Corporation v. Galway Bay Mobile Homeowners Association, Inc.*, 304 So. 3d 1227 (Fla. 3<sup>rd</sup> DCA 2019). (Finding that challenges to an unreasonable lot rental increase are inherently matters of common interest as required under Rule 1.222 Fla. R. Civ. P. (2022)).

3. Defendant's Third Affirmative Defense is denied. Class certification by evidentiary hearing, and other typical class action requirements found in Rule 1.220 Fla. R. Civ. P., are not

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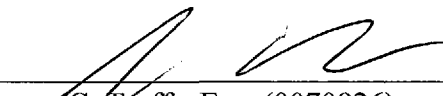
<sup>1</sup> Defendant's First Affirmative Defense states that Defendant (rather than Plaintiff) lacks the standing to sue. Believing this to be a typo, Plaintiff replies assuming Defendant meant to challenge Plaintiff's standing.

applicable to cases brought pursuant to Chapter 723 and Rule 1.222. “By its plain language, Rule 1.222 does not require an evidentiary hearing. [...] [Actions brought pursuant to Rule 1.222 are] explicitly not subject to the requirements of Rule 1.220. (“An action under this rule shall not be subject to the requirement of rule 1.220.”).” *Biza*, at 1232-1233. *See also*, Rule 1.222 Fla. R. Civ. P. (2022).

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to all registered parties via the Florida Courts Electronic Filing System this 17<sup>th</sup> day of November 2022.

PORGES, HAMLIN, KNOWLES & HAWK, P.A.

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